

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARK PATRICK LONGORIA,

Petitioner

VS.

JULIE ANITA PINALES,

Respondent

) Case Number: FDV-19-814874

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR ATTORNEYS FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Mark Patrick Longoria and Julie Anita Pinales.
- 2) On 12/3/25, the Court granted Respondent's Request to Renew Domestic Violence Restraining Order (DVRO). The Court renewed the restraining order previously issued on 10/29/20 for 5-years. See Order to Renew Domestic Violence Restraining Order filed 12/3/25.
- 3) On 12/16/25, Respondent filed a Request for Order seeking \$16,311.68 in Family Code section 6344 attorney's fees and costs. Respondent asserts she is the prevailing party in a 5-year DVRO. The matter was set for hearing on 3/12/26.
- 4) On 12/16/25, Respondent's attorney filed a declaration substantiating her request for \$16,311.68 in Family Code section 6344 attorney's fees and costs.
- 5) On 12/16/25, Respondent filed a supportive Memorandum of Points and Authorities asserting that Respondent is entitled to recover fees as the prevailing party unless Petitioner demonstrates inability to pay.

- 6) On 12/18/25, Respondent filed a Proof of Service by Mail and Proof of Electronic Service indicating Respondent's 12/16/25 Request for Order and supportive documents were served on Petitioner on 12/18/25.
- 7) On 3/5/26, Respondent filed a Reply Declaration asserting that Petitioner did not serve a Responsive Declaration. Respondent attached as Exhibit A an email wherein Petitioner acknowledges Respondent's 12/16/25 Request for Order.
- 8) Petitioner did not file a Responsive Declaration.
- 9) At the prior 3/12/26 hearing, the Court continued the matter to 5/14/26 at Petitioner's request due to a pending appeal. See Findings and Order After Hearing filed 3/12/26.
- 10) On 4/21/26, an Order Dismissing Appeal was filed.
- 11) On 5/4/26, Respondent filed a Supplemental Declaration, supportive attorney declaration, and Memorandum of Points and Authorities. Respondent asserts that Petitioner has the ability to pay based on his own representations to the Court that he is employed (see Exhibit A), which aligns with his public LinkedIn profile (see Exhibit B). Respondent further asserts that Petitioner's failure to disclose his income and expenses should not mean that he has met his burden to prove inability to pay. Respondent augments her request to \$22,006.68.

B. Findings and Order

- 1) The Court finds Respondent was the prevailing party in the DVRO matter at issue, so Respondent's request for attorney's fees and costs under Family Code section 6344 is statutorily mandated; however, the Court must determine Petitioner's ability to pay, which is a required finding pursuant to 6344(c), prior to issuing an attorney's fee award.
- 2) The Court finds it is reasonably likely that Petitioner has the ability to pay based on the information Respondent provided to the Court and Petitioner's failure to provide any information at all regarding his income and expenses despite being provided ample time to do so.
- 3) When a party requests attorney's fees and costs, the court has authority to make ability-to-pay determinations based on the evidence before it. See *Alicia R. v. Timothy* (1994) 29 Cal App. 4th 1232, 1239.
- 4) As such, Respondent's request for \$22,006.68 in Family Code section 6344 attorney's fees and costs is GRANTED.

1 5) Effective 6/1/26, Petitioner shall pay \$1,000 a month by the 1st of every month until this balance
2 is paid in full.

3 6) Petitioner's attorney shall prepare the Findings and Order After Hearing.

4 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).